

**DEPARTMENT EIGHT
JUDGE D. SCOTT DANIELS FOR WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, SEPTEMBER 17, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**ODK CAPITAL, LLC vs. JBL INDUSTRIES INC., et al.
Case No. CU24-02445**

Motion to Withdraw as Attorney x2

TENTATIVE RULING:

The unopposed motions to withdraw as attorney of record are GRANTED and effective upon service of the order.

**DAVID MORFIN COLLINS v. BRIAN THOMPSON, et al.
Case No. CU24-04179**

BRIAN THOMPSON, BERNICE THOMPSON, and PHILTHY CLEAN TATTOO's Motion for Summary Judgment

TENTATIVE RULING

Defendants BRIAN THOMPSON ("BRIAN"), BERNICE THOMPSON ("BERNICE"), and PHILTHY CLEAN TATTOO ("PHILTHY CLEAN," together with the previous defendants "Moving Defendants") move for summary judgment against Plaintiff DAVID MORFIN COLLINS's complaint alleging negligence. Summarized, Plaintiff's complaint alleges that on May 29, 2023 Defendant MARTIN MONTOYA ("MONTOYA"), working as an employee of Moving Defendants, tattooed the wrong name on Plaintiff's upper back.

Legal Standard. A defendant may move for summary judgment on the basis that the plaintiff cannot establish an element of his cause of action. (Code Civ. Proc., § 437c,

subd. (o)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid.*) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subds. (b)(1), (d).) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.) Additionally, a defendant does not meet its burden of showing a plaintiff cannot establish an element merely by pointing out the absence of evidence; the defendant must show that the plaintiff both does not possess and cannot reasonably obtain evidence. (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1286-1287.)

Objections to Evidence. In ruling on a motion for summary adjudication the court need only rule on those evidentiary objections that it deems material to its disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Plaintiff's #1. Plaintiff's objection to Moving Defendants' Exhibit G, ostensibly a signed consent and waiver for the tattoo process, on the basis that it is not authenticated is sustained. Moving Defendants' counsel declares it is a "true and correct copy" without establishing any basis for her knowledge.

The court finds the remaining objections immaterial to the disposition of this motion.

Analysis. The elements of a negligence claim are duty, breach, and causation of damages. (*Moses v. Roger-McKeever* (2023) 91 Cal.App.5th 172, 178-179.) Under the doctrine of *respondeat superior* an employer is liable for the negligence of his employee occurring in the course and scope of employment. (*Presbyterian Camp & Conference Centers, Inc. v. Superior Court* (2021) 12 Cal.4th 493, 502.)

Moving Defendants do not carry their initial burden to demonstrate Plaintiff's inability to prove any element of his cause of action. Their "independent contractor" and "waiver" arguments fail.

S.G. Borello & Sons, Inc. v. Department of Industrial Relations (1989) 48 Cal.3d 341 (*Borello*) holds that the right to control the manner and means of an individual's work is the decisive factor in determining whether that individual is a principal's employee or only an independent contractor, in the context of *respondeat superior* liability. (*Borello*

at p. 350; *Orosco v. Sun-Diamond Corp.* (1997) 51 Cal.App.4th 1659, 1668, citing 2 Witkin, Summary of Cal. Law (9th ed. 1987) Agency and Employment, § 115, p. 109.) “Secondary factors” identified in *Borello* that are well considered when determining employee status include whether the putative employer has the right to discharge the worker at will and without cause, whether the worker is engaged in a distinct occupation or business, whether the kind of work involved is typically done supervised, the skill required for the work, which party supplies the instrumentalities of work, the length of time for which services are to be performed, the method of payment, whether the work is part of the principal’s regular business, and whether the parties believe they have an employer-employee relationship. (*Borello* at pp. 350-351; *Empire Star Mines Co. v. Cal. Emp. Com.* (1946) 28 Cal.2d 33, 43-44.)

Moving Defendants present insufficient undisputed material facts on the subject of their control over MONTROYA’s work to shift the burden to Plaintiff to raise a triable issue in opposition. They establish only that MONTROYA provided his own ink machines and ink. (Defendants’ Undisputed Material Facts #7.) Their assertion that MONTROYA set his own hours is disputed by MONTROYA’s own testimony that he had to be at PHILTHY CLEAN’s parlor when Moving Defendants wanted him there. (Declaration of Alex Farzan in Support of Opposition at ¶ 3, Exhibit 2 [at 18:16-19, 26:6-18].) Their assertion that MONTROYA set the fees for customers to pay is not supported by the cited evidence. Their assertion that they were just an “intermediary” between MONTROYA and customers is not supported by any citation to evidence. The other “facts” offered in Moving Defendants’ separate statement are legal conclusions or are not material, such as the conclusion that Moving Defendants had no control over MONTROYA’s work or the irrelevant statement that he had creative control over the artwork in each tattoo. That the tattoo artist had control over the artwork does not mean he did not work under the control of the tattoo parlor. Though the party that supplies the instrumentalities of work is relevant under *Borello* analysis there is too little presented here to establish that Plaintiff is unable to prove MONTROYA’s employee status.

Even if the burden on summary judgment were considered shifted to Plaintiff there are clear triable issues of material fact on the subject of Moving Defendants’ control over MONTROYA. To start with and on the subject of the instrumentalities of work, Plaintiff presents as undisputed fact that BRIAN does not allow artists to use “Amazon stuff” for their tattoo machines and supplies stencils, the stencil printer, and paper towels. (Plaintiff’s Undisputed Material Fact (“P UMF”) #6-7, 9.) The stencil supplies are a significant part of the tattooing process in light of the undisputed fact that BRIAN requires artists at PHILTHY CLEAN to observe a particular process, as follows: the artist must obtain the client’s signature with ID, take a photograph, prepare the tattoo art on an iPad, obtain client approval for the art, create a stencil, apply the stencil, get the client’s approval of the stencil in the mirror, and only then begin the tattoo. (P UMF #3-5.) Plaintiff also presents evidence that Moving Defendants set MONTROYA’s hours, which militates towards finding he was an employee. (Declaration of Alex Farzan in Support of Opposition at ¶ 3, Exhibit 2 [at 18:16-19, 26:6-18].) Plaintiff presents as undisputed fact that PHILTHY CLEAN shows new artists how it wants the tattoo design and application process to work and expects artists to follow the rules of the shop. (P

UMF #57.) Plaintiff presents as undisputed fact that MONTOYA sent BRIAN photographs of the stencil and tattoo in progress when creating Plaintiff's tattoo, suggesting control exercised over the artistic process. (P UMF #21.) It is also meaningful that MONTOYA believed he was PHILTHY CLEAN's employee because, per *Borello*, the beliefs of the parties as to an employer-employee relationship are relevant secondary factors. (P UMF #55.) Plaintiff also presents as undisputed fact that MONTOYA did not work at any other parlors between 2019 and 2025 and would sometimes open and close the shop, which is evidence of work done as part of Moving Defendants' regular business. (P UMF #60.) Lastly, and on that point, the secondary *Borello* factor of whether the work performed is part of the principal's regular business suggests that MONTOYA was an employee because he was a tattoo artist working inside of a tattoo parlor.

Moving Defendants' waiver argument fails because they have no competent evidence of a signed waiver form. The court observes that the document presented does not contain a release of claims related to anything except the novel coronavirus anyway.

Conclusion. Moving Defendants' motion for summary judgment is denied.

WALKER v. SOLANO COUNTY OFFICE OF EDUC.
Case No. CU24-05338

Motion to Quash Service of Summons

TENTATIVE RULING:

The motion to quash the summons is granted.

Until statutory requirements for proper service of process are satisfied, the court lacks personal jurisdiction over a defendant. (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808; *Honda Motor Co. v. Superior Court* (1992) 10 Cal.App.4th 1043, 1048.) "A summons may be served on a public entity by delivering a copy of the summons and of the complaint to the clerk, secretary, president, presiding officer, or other head of its governing body." (Code Civ. Proc. § 416.50(a).) The summons and complaint was served, by personal service, on "Collin Bublavi, HR". (Proof of Service (9/9/24).) Bublavi was not "the clerk, secretary, president, presiding officer, or other head of SCOE's governing body." (Decl. of Garcia, ¶ 3.)

GERALD QUINT v. EVELYN BAYON, et al.
Case No. CU24-08326

Motion to Compel

TENTATIVE RULING:

Plaintiff's Motion to Compel is DENIED.